

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

USL AUTO EXPORTING INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*.

DOCKET NO. 23-13

Served: March 18, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On March 13, 2024, the parties filed a joint status report and proposed discovery and briefing schedule. The discovery schedule proposed by the parties does not complete discovery until June 28, 2024, more than six months after service of Respondent's answer. The Commission's rules require completion of discovery within 150 days of service of the answer, and so I will modify the parties' proposal as set forth below. 46 C.F.R. § 502.141(g). I understand that the case has been delayed, but this is through the parties' failure to comply with the Commission's rules and the Initial Order, as described in the order denying Complainant's motion for default judgment. Under these circumstances, I am not inclined to allow the parties additional time to complete discovery.

To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

Complainant requested that a hearing be held in the matter. Pursuant to 46 C.F.R. § 502.62(a)(5), "[t]he presiding officer will determine whether an oral hearing is necessary." At this point in the proceeding, it is not clear that there is reason to conduct an oral hearing – accordingly, the Complainant's request is **DENIED WITHOUT PREJUDICE**.

Under normal circumstances, cases such as these are resolved following briefing, and the parties have not proposed a briefing schedule. I have set a briefing schedule below. Written discovery requests may be served immediately and must be served sufficiently in advance of the date discovery closes to allow for responses in accordance with the Commission's rules. Motions to compel, if any, should be filed as soon as possible. I also note that Respondent's answer contains what appears to be a counterclaim. This counterclaim is not set out with specificity, nor is it clear that it arises out of the Shipping Act. If Respondent intends to assert a Shipping Act

counterclaim, it must file a counterclaim that complies with 46 C.F.R. § 502.62 by the deadline below.

The parties indicated in their joint status report that they have not engaged in settlement discussions. Although I instructed the parties to review the Initial Order at the March 13, 2024 status conference, it appears they may have overlooked the following requirement:

Within fifteen days of the service of a respondent's answer, the parties "must participate in a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) as to whether this matter may be resolved through mediation. The preliminary conference may be conducted either in person or via telephone, video conference, or other forum." 46 C.F.R. § 502.64. This proceeding will not be stayed during the dispute resolution process. In the joint status report, the parties must state whether each party has contacted CADRS and whether the parties have agreed to engage in mediation. The parties are directed *not* to state the parties' positions on whether to agree to mediation or their settlement positions.

Initial Order, p. 1. I have therefore also included a deadline by which the parties must comply with the preliminary conference requirement set forth above and file a supplemental joint status report confirming that they have done so.

The parties are hereby **ORDERED** to follow this schedule:

April 2, 2024	Third-party complaints, counterclaims, and amendments to the pleadings
April 5, 2024	The parties must participate in a preliminary conference with CADRS and file a supplemental joint status report confirming they have done so
May 23, 2024	Discovery closed
June 24, 2024	Complainant's brief, proposed findings of fact, and appendix
July 24, 2024	Respondent's brief, proposed findings of fact, appendix, and response to proposed findings of fact
August 8, 2024	Complainant's reply

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth*

Recreations, Inc., 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information. Parties may be required to refile any documents that do not follow the requirements below or in the Initial Order.

The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e). The brief should cite to evidence in the appendix using the required sequential numbers (see below).
2. **[Party’s] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party’s] Responses to [Party’s] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party’s proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party’s] proposed findings of fact with the hard copies of the response to [Party’s] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party’s] Appendix.** The evidence on which a party’s proposed findings of fact or response to another party’s proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;

- c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
- d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
- e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

Alex Michael Chintella Digitally signed by
Alex Michael Chintella
Date: 2024.03.18
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Alex M. Chintella
Administrative Law Judge